

Cal.App. 3d 1617.) “If there is a controversy which calls for a declaration of rights, it is no objection that past wrongs are also to be redressed; but there is no basis for declaratory relief where only past wrongs are involved.” (*Baldwin v. Marina City Properties, Inc.* (1978) 79 Cal. App. 3d 393, 407.) Here, it appears that the allegations regarding misrepresentations and the use of unlicensed laborers are based entirely on past wrongs. The demurrer is sustained without leave to amend.

2.

CASE #	CASE NAME	HEARING NAME
CVME2608128	KING-STEELE VS COUNTY OF RIVERSIDE	HEARING ON PRELIMINARY INJUNCTION

Tentative Ruling: Hearing Required.

3.

CASE #	CASE NAME	HEARING NAME
CVME2507574	DANKO RESTAURANT GROUP, INC VS PATTAH	MOTION TO COMPEL: ANSWER/RESPONSE TO PRODUCTION OF DOCUMENTS

Tentative Ruling: Motion is continued until November 25, 2026 at 8:30 am M301. Both parties are required to submit a declaration at least 10 days before the next hearing detailing compliance with the meet and confer requirements and addressing the Court’s concerns with the responses.

Pursuant to CCP §2031.010, a party may demand that any other party produce and inspect a document that is in the possession of another party. The demanding party must designate documents by specifically describing individual items or reasonably particularizing categories of documents. (CCP §2031.030(c)(1).) The responding party must respond to each request by either a statement that the party will comply, a representation that the party is unable to comply or an objection. (CCP §2031.210(a)(1)-(3).) A demanding party may move for an order compelling further responses to a demand for inspection if the party determines that the statement of compliance or representation of inability to comply is incomplete or if an objection is without merit. (CCP §2031.310(a)(1)-(3).) A moving party must establish good cause justifying discovery. (CCP §2031.310(b)(1).) To establish good cause, the moving party must demonstrate relevance and facts justifying discovery. (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) Once good cause is established, the responding party has the burden to justify any objections. (*Ibid.*)

Meet and Confer - A motion to compel a further response to an inspection demand or interrogatory must be accompanied by a declaration stating facts showing a “reasonable and good faith attempt” to resolve informally the issues presented by the motion before filing the motion. (CCP §§ 2031.310(b)(2); 2030.300(b).) “This rule is designed to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order.” (*Townsend v. Superior Court* (1998) 61 Cal. App. 4th 1431, 1435.) The level of effort necessary to satisfy the requirement varies depending on the circumstances of the case, but a serious effort is required. (*Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1016.) Whether a “reasonable and good faith attempt” was made requires an “evaluation of whether, from the perspective

of a reasonable person in the position of the discovering party, additional effort appears likely to bear fruit.” (*Clement v. Alegria* (2009) 177 Cal.App.4th 1277, 1294.) Importantly, the meet and confer declaration must state facts showing that the parties made “a reasonable and good faith attempt at an informal resolution of *each issue presented by the motion*.” (CCP § 2016.040, emphasis added.)

Here, DRG’s counsel sent one meet and confer letter on July 21, 2026, the day before the present Motion was filed. This was clearly done in an effort to meet the deadline to file the Motion to Compel under CCP §2031.310(c), which provides that unless notice of a motion to compel further responses is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand. The supplemental responses were electronically served on June 5, 2026, making the motion deadline July 22, 2026. It appears that DRG waited until the last minute under the belief that the supplemental responses could be addressed by the prior Motion filed before they were served, despite the fact that the supplemental responses were not addressed by that Motion or the accompanying separate statement.

Although there appears to be some animosity between counsel, the statute requires that the parties attempt to meet and confer. Since there was no meet and confer regarding the supplemental responses, the hearing will be continued to allow the parties to comply with the statutory requirements. It should be noted that the supplemental responses are a complete mess. Rather than complete, straightforward responses, RBI includes improper legal arguments and comments regarding DRG and counsel as “objections”. These comments render the responses confusing and non-compliant. RBI also improperly refuses to produce documents that have been produced by other parties. Furthermore, because the supplemental responses are difficult to understand, it is not clear whether the responses are responsive to the RFPs demanding communications with various individuals. These issues should be addressed during the meet and confer process.

4.

CASE #	CASE NAME	HEARING NAME
CVME2401065	DECLUE VS COSTCO WHOLESALE CORPORATION	DEMURRER / MOTION TO STRIKE COMPLAINT

Tentative Ruling: Request for Judicial Notice Granted. Motion to Strike is denied without prejudice. Demurrer is overruled. Defendant to file response within 20 days.

Defendant Fuscoe Engineering, Inc demurs to the complaint arguing it fails to state a cause of action because the applicable two-year statute of limitations expired on September 1, 2024, before Fuscoe was ever named in this action, and Plaintiff cannot invoke Code of Civil Procedure¹ section 474 to toll the limitations period because Plaintiff’s own prior filings conclusively establish that Plaintiff was not genuinely ignorant of facts giving rise to a cause of action against Fuscoe at the time the original Complaint was filed. (§ 430.10(e).) The companion motion to strike, brought under §§ 435 and

¹ All further statutory references are to Code of Civil Procedure unless specified.